

Id. Class Counsel spent 402.8 hours in prosecuting this action, which was divided among the attorneys working on this case according to skill level. The hours expended by each attorney were reasonable and not duplicative and reflect the extensive investigation and analysis that was required to achieve this Settlement.

Multiplying the total hours expended by Class Counsel by their reasonable hourly rates yields a lodestar of \$239,712.50. This amount is under the requested award, and thus a modest multiplier of approximately 1.39 is respectfully requested.

The amount of \$20,482.07 in litigation costs are reasonable and are approved. Settlement administration costs of \$24,000 are reasonable and are approved.

The requested representative payment of \$10,000 for plaintiff is reviewed now, under the criteria for evaluation of representative payment requests discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807.

Ruling

1. The Court finds that the settlement is fair, reasonable, and adequate. The motion is **granted**.
2. The Court will execute the proposed order lodged on May 28, 2026 and set a compliance hearing as set forth in that order. A copy of this ruling shall be attached to the proposed order and is incorporated thereto, inclusive of all its terms.
3. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs' counsel is ordered to submit a compliance statement at least ten (10) court days before the compliance hearing date. 5% of the attorney's fees are to be withheld by the claim's administrator pending satisfactory compliance as found by the Court. This is an addition to the proposed order.
4. The compliance hearing will be held in Department 16 at 9:00 a.m. The Court may issue a release of the remaining fees through an unreported minute order without hearing upon review and approval of the compliance statement.
5. No appearance is required at the hearing on June 24, 2026.

7. 9:00 AM CASE NUMBER: C24-00509

CASE NAME: JOSE CUELLAR VS. GUANGYU ZHANG

***HEARING ON MOTION IN RE: ORDER GRANTING PLAINTIFF'S SUBSTITUTION OF SUCCESSOR IN INTEREST**

FILED BY: CUELLAR, JOSE

TENTATIVE RULING:

Summary

Plaintiff Jose Cuellar moves this Court for an order pursuant to Code of Civil Procedure Section 337.31, substituting Uriel Cuellar Martinez, Maria Cuellar Martinez and Santiago Cuellar Martinez in their capacity as successor in interest to Jose Cuellar, deceased, under Code of Civil Procedure section 377.31. as plaintiffs in place and stead of decedent.

This motion is **granted** as unopposed. Plaintiff is ordered to prepare and e-file a proposed order that conforms to this ruling, attaching a copy of this ruling no later than five (5) days from the date of the hearing. No appearance is required at the hearing on June 24, 2026. The next case management conference is September 24, 2026 at 8:30 a.m.

8. 9:00 AM CASE NUMBER: C24-03411

CASE NAME: JULIE ROMANOWSKI VS. AVI ELIAHU

*HEARING ON MOTION IN RE: BIFURCATE TRIAL

FILED BY: ELIAHU, AARON

TENTATIVE RULING:

Off calendar. (See Minutes of June 17, 2026 summary judgment hearing.)

9. 9:00 AM CASE NUMBER: C25-03334

CASE NAME: DAVID CHEW VS. VETERINARY EMERGENCY GROUP,

HEARING ON DEMURRER TO: COMPLAINT

FILED BY: VETERINARY EMERGENCY GROUP,

TENTATIVE RULING:

Before the Court is Defendants Veterinary Emergency Group (“VEG”), Melissa, Ogg, D.V.M., and Rosella To, D.V.M.’s (collectively “Defendants”) demurrer. The demurrer relates to Plaintiffs David Chew and Jean Lee’s (collectively “Plaintiffs”) Complaint for (1) negligence (veterinary malpractice); (2) trespass to chattels; (3) breach of bailment; (4) breach of contract; (5) intentional infliction of emotional distress; (6) intentional misrepresentation; and (7) fraudulent concealment.

Defendants demur to all seven causes of action on the ground that they are uncertain pursuant to Code of Civil Procedure section 430.10(f) in that they violate California Rules of the Court rule 2.112 by failing to identify which of the Defendants the claims are against. Defendants also demur to Plaintiffs second through seventh causes of action pursuant to Code of Civil Procedure section 430.10(e), on the ground that they fail to state facts sufficient to constitute causes of action.

Plaintiffs oppose Defendants’ demurrer on the grounds that (1) Plaintiffs’ causes of action are directed at all Defendants; (2) Defendants’ demurrer ignores the plainly alleged facts and the law regarding each cause of action; and (3) Defendants attempt to litigate factual issues prematurely.

For the following reasons, Defendants’ demurrer is **SUSTAINED IN ITS ENTIRETY WITH LEAVE TO AMEND**.

Plaintiffs have 15 days from the date of entry of this order to file and serve any amended pleading.

I. Factual Allegations

This case arises out of a dispute over allegedly negligent veterinary medical care.

Plaintiffs David Chew and Jean Lee were the owners of an 11-year-old French Bulldog named Zoë. (Initial Complaint (“Compl.”) at 2:5-6.) On November 13, 2024, Zoë presented to Veterinary Emergency Group in San Ramon, California, for labored breathing. (*Id.* at 3:5-6.) Plaintiffs’ parents were pet sitting Zoë at the time of her presentation to VEG as Plaintiffs were out of the country, however Plaintiffs returned quickly upon learning of Zoë’s condition. (*Id.* at 3:9-11.) Despite initially being out of the country, Plaintiffs were in direct contact with veterinary staff at VEG such that they made all care decisions. (*Ibid.*)